JOINDER AGREEMENT
TO
LIMITED LIABILITY COMPANY AGREEMENT

OF

NASH SERVICE HOLDINGS LLC

This Joinder Agreement (this "Joinder Agreement") is a joinder to the Limited Liability Company Agreement of Nash Service Holdings LLC, a Delaware limited liability company (the "Company"), dated as of February 23, 2021, as the same may be amended from time to time (the "Operating Agreement"). This Joinder Agreement shall be governed by, and construed in accordance with, the laws of the State of Delaware. In the event of any conflict between this Joinder Agreement and the Operating Agreement, the terms of this Joinder Agreement shall control.

The undersigned (this "Joining Party") hereby joins and enters into the Operating Agreement (a copy of which is annexed hereto as Exhibit A) in consideration of the issuance of the Membership Interest (as defined in the Operating Agreement) in the Company described below. By signing and returning this Joinder Agreement to the Operating Agreement, the Joining Party accepts and agrees to be bound by and subject to all of the terms and conditions of and agreements of a Member contained in the Operating Agreement with all attendant rights, duties and obligations of a Member. The parties to the Operating Agreement shall treat the execution and delivery hereof by the Joining Party as the execution and delivery of the Operating Agreement by the Joining Party and, upon receipt of this Joinder Agreement by the Company, the signature of the Joining Party set forth below shall constitute a counterpart signature to the signature page of the Operating Agreement.

The Company hereby acknowledges that Membership Interest held, at the time of applicable calculation, by each of Data Center El Segundo L.A. Limited Partnership and the Joining Party shall be aggregated together for the purpose of determining the availability to such parties of any rights under the Operating Agreement or any other related agreement.

All terms and conditions under the Operating Agreement, which apply to Data Center El Segundo L.A. Limited Partnership, shall apply also the Joining Party.

Any distribution of proceeds by the Company to the Joining Party shall be subject to the prior written approval of Data Center El Segundo L.A Limited Partnership.

If the undersigned is a U.S. person, complete the attached Form W-9. If not a U.S. Person complete the applicable Form W-8BEN, W-8BEN-E, W-8IMY or W-8ECI https://apps.irs.gov/app/picklist/list/formsInstructions.html?value=w-8&criteria=formNumber

Initial Capital Investment: $ 600,000

Due Date for making Initial Investment : February 24, 2021

Name in which Series Interest will be issued: Tamar Marash

Address for Notices:	With copies to:
41 Middleway United Kingdom, LONDON NW11 6SH	The service financial planing
Tel.:	Tel.: 03-9707070
Email: tamar@marash.net	Email: sharon@tswm.co.il

IN WITNESS WHEREOF, this Joinder Agreement has been executed as of the date first above written.

Name of Joining: Tamar Marash

X_____

(signature)

Name of person signing Tamar Marash

Title: _____

NASH SERVICE HOLDINGS LLC

By: **NASH SERVICES GP LLC**, its manager

By:_____

Name: _____

Its: _____

EXHIBIT A
Limited Liability Company Agreement of Nash Service Holdings LLC

LIMITED LIABILITY COMPANY AGREEMENT

OF

NASH SERVICE HOLDINGS LLC

A DELAWARE LIMITED LIABILITY COMPANY

Date: _____ __, 2021

THE MEMBERSHIP INTERESTS HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED, OR THE SECURITIES LAWS OF ANY JURISDICTION. NO MEMBERSHIP INTEREST MAY BE SOLD OR OFFERED FOR SALE (WITHIN THE MEANING OF ANY SECURITIES LAW) UNLESS A REGISTRATION STATEMENT UNDER ALL APPLICABLE SECURITIES LAWS WITH RESPECT TO THE INTEREST IS THEN IN EFFECT OR AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THOSE LAWS IS THEN APPLICABLE TO THE INTEREST. A MEMBERSHIP INTEREST ALSO MAY NOT BE TRANSFERRED OR ENCUMBERED UNLESS THE PROVISIONS OF ARTICLE 5 OF THIS LIMITED LIABILITY COMPANY AGREEMENT ARE SATISFIED.

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A. Members' Names; Capital Contributions and Capital Sharing Percentages
B. Definitions

LIMITED LIABILITY COMPANY AGREEMENT
OF
NASH SERVICE HOLDINGS LLC

This Limited Liability Company Agreement (this "**Agreement**") of Nash Service Holdings LLC, a Delaware limited liability company (the "**Company**") is entered into and adopted as of February 9, 2021 (the "**Effective Date**"), by and between, Nash Services GP LLC, a Delaware limited liability company ("**The Service GP"** or "**Manager**"), Data Center El Segundo L.A. Limited Partnership and the persons who have signed a Joinder Agreement and whose names are set forth on Schedule A annexed hereto (each individually a "**Member**" and collectively together with The Service GP, the "**Members**").

RECITALS:

WHEREAS, the Company is being formed to acquire membership interest in Edge Nash LLC ("**Nash**"), the Delaware limited liability Company which is the sole member of EdgePWR Acquisitions LLC ("**Acquisitions**"), the limited liability company which has entered into a contract (the "**Purchase Agreement**") to acquire commercial real estate known as T-5 Los Angeles, approximately 115,000 square foot data center project located at 444 Nash Street in El Segundo, California, 90245 (the "**Property**") and which has assigned such contract to Nash DC LLC, a Delaware limited liability company in exchange for a membership interest therein; and

WHEREAS, the parties hereto desire to enter into this Agreement in order to set forth the rights and obligations of the parties hereto with respect to the Company.

NOW THEREFORE, in consideration of the foregoing, of the mutual promises contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties intending to be legally bound hereby agree as follows:

ARTICLE 1

FORMATION OF LIMITED LIABILITY COMPANY

1.1 **Formation.** The Company has been organized as a Delaware limited liability company by the filing of a Certificate of Formation (the "**Certificate**") with the Secretary of State of the State of Delaware pursuant to the Act.

1.2 **Name**. The name of the Company is Nash Service Holdings LLC. The business of the Company will be conducted under such name, as well as any other name or names as the Manager may from time to time determine.

1.3 **Place of Business and Registered Office**. The initial registered agent for the Company in the State of Delaware is set forth in the Certificate . The Manager may change the principal or registered office or registered agent of the Company in any state from time to time. Manager may establish, maintain and abandon one or more additional places of business for the Company.

1.4 **Purpose**. The purpose of the Company shall be to indirectly own a membership interest in Nash which in turns owns through its membership interest in Acquisition a membership interest in Nash DC LLC ("**Nash DC**"), the Delaware limited liability company formed to acquire and hold record title to the Property (directly or through a single purposes wholly owned limited liability company) and to develop, redevelop, improve, finance, refinance, lease, sell and dispose of the Property and to undertake any activities reasonably related thereto.

1.5 **Title to Company Property**. All assets owned by the Company will be owned by the Company or a Subsidiary as an entity and, insofar as permitted by applicable law, no Member will have any ownership interest in any Company assets in its individual name or right.

1.6 **Term**. The term of the Company will be perpetual unless sooner terminated under Article 7.

1.7 **Adoption of Limited Liability Company Agreement**. The undersigned Members hereby adopt this Agreement as the Limited Liability Company Agreement of the Company in accordance with the Act.

ARTICLE 2

CAPITALIZATION AND RELATED MATTERS

2.1 **Initial Capital**.

As of the Effective Date, each Member has made an initial Capital Contribution to the Company in the amount set forth on Exhibit A attached hereto.

2.2 **Additional Capital**.

(a) Additional Contributions. No Member shall have any obligation to make any additional Capital Contribution to the Company, except as otherwise expressly provided in this Section 2.2. Upon (i) a determination by the Manager in its reasonable business judgment that the Company requires additional funds to operate the business of the Company, (ii) the receipt by the Company of a call for additional capital contributions by Acquisition, including following the receipt by Acquisition of a Nash DC Capital Call Notice, (iii) a determination by the Manager for the Company to become a Nash DC Funding Member, or (iv) the determination of the Manager to be a Nash DC Buy-Sell Buyer (the "**Additional Funds**"), and that the Additional Funds should be obtained from Capital Contributions from the Members, the Manager shall promptly provide each Member with a written notice (a "**Capital Call**") setting forth (i) the aggregate amount of Additional Capital Contribution required of each Member (the same being equal to the Member's Proportionate Share of the Additional Funds); (ii) the date by which such Additional Capital Contributions are required to be funded, which shall not be less than five (5) Business Days after the date the Capital Call is received by each Member (the "**Due Date**"); and (iii) the depository institution and account into which the Additional Capital Contribution shall be made. Each Member shall deposit its Additional Capital Contribution with respect to a Capital Call, in immediately available funds, in the designated depository institution and account within the time period specified in the Capital Call.

(b) Result of Failure to Contribute Additional Capital. If any Member shall contribute its respective Additional Capital Contribution set forth in a Capital Call on or before the Due Date (the "**Funding Member**") and other Member shall fail to contribute its respective Additional Capital Contribution set forth in the Capital Call on or before the Due Date (the "**Non-Funding Member**"), then the Funding Member may choose one, and only one, of the following options:

(i) Cause the Company to return to the Funding Member its Additional Capital Contributions made with respect to the Capital Call.

(ii) Make a loan to the Non-Funding Member in an amount equal to the Non-Funding Member's Proportionate Share of the Additional Funds set forth in the Capital Call (each such loan is hereinafter referred to as a "**Default Loan**"). The Default Loan shall (i) be advanced directly to the Company to fund the Non-Funding Member's Proportionate Share of the Additional Funds, and (ii) shall bear interest from the date of advancement of the Default Loan to the Company at an annual rate equal to the lesser of eighteen percent (18%) per annum or the maximum rate allowed by applicable law. The repayment of any Default Loan made to a Non-Funding Member hereunder shall be secured by a lien upon the distributions payable with respect to all of the Membership Interests of the Non-Funding Member such that any amounts otherwise payable by the Company to the Non-Funding Member under this Agreement shall instead be paid by the Company to the Non-Funding Member in repayment of the Default Loan (provided that for all purposes such distributions or payments shall be deemed to have been paid by the Company to the Non-Funding Member, thereby discharging the Company's obligation to make such payment or distribution to the Non-Funding Member) until the Default Loan and all accrued and unpaid interest thereon have been repaid in full. Each Non-Funding Member covenants and agrees to execute and deliver any and all documents, instruments and agreements (including instruments in a recordable form) reasonably necessary to enforce or perfect such security interest.

(iii) Cause the Company to dilute the Capital Sharing Percentage of the Non-Funding Member (whether or not the Funding Member in the exercise of its sole and absolute discretion elects to contribute the Non-Funding Member's Proportionate Share of the Additional Funds). If the Funding Member elects to dilute the Capital Sharing Percentage of the Non-Funding Member, the Capital Sharing Percentage of each Member shall be adjusted to equal the percentage equivalent of the quotient determined by dividing (1) the difference between (a) the sum of (i) 100% of the aggregate Capital Contributions (excluding Substituted Capital Contributions (as hereinafter defined)) then or theretofore made by the Member to the Company, (ii) 100% of the aggregate original principal amounts of any loans then or theretofore advanced by the Member to the Company, and (iii) 200% of the aggregate Substituted Capital Contributions then or theretofore made by the Member to the Company, if any, minus (b) 100% of the aggregate Substituted Capital Contributions then or theretofore made by the other Member to the Company, if any, by (2) the sum of (i) 100% of the aggregate Capital Contributions (including, without limitation, Substituted Capital Contributions) then or theretofore made by all of the Members to the Company and (ii) 100% of the aggregate original principal amounts of loans then or theretofore advanced by the Members to the Company. As used herein, the

term "**Substituted Capital Contribution**" shall mean an Additional Capital Contribution made by the Funding Member equal to and in replacement of the amount that the Non-Funding Member failed to timely contribute pursuant to Section 2.2. If a Member's Capital Sharing Percentage is increased pursuant to this Section 2.2(b)(iii), then (A) its Gross Adjusted Capital Contributions, as previously adjusted, shall, in addition to being increased by the amount of Capital Contributions (including without limitation ordinary Capital Contributions and Substituted Capital Contributions) made by the Member, also be increased by an amount equal to an additional 100% of the Substituted Capital Contributions made by the Member, and (B) to the extent determined by the Manager, the Capital Account balances of the Members shall be adjusted so that the Partially Adjusted Capital Accounts immediately after such adjustment (after taking into account all items of Profits and Losses and other items through the date of the adjustment as deemed appropriate by the Manager) are equal as closely as possible to the Target Accounts at such time, after giving effect to the adjustments to Target Accounts resulting from changes to the Capital Sharing Percentages and Gross Adjusted Capital Contributions required by this Section 2.2(b)(iii).

(c) Loans by Members or Affiliates. With the prior consent of the Manager , any Member or Affiliate of any Member may (but shall not be obligated to) at any time loan money or guarantee a loan to the Company for the purpose of paying Company operating expenses, loan obligations or any other Company obligations. If any Member or Affiliate of any Member lends funds or guarantees a loan of funds to the Company, such Member or Affiliate shall be entitled to receive interest on such loan, or a fee for guaranteeing any such loan, at an interest rate or fee to be agreed upon by such Member of Affiliate and the Manager.

(d) Company's Failure to make Additional Capital Contribution to Nash DC attributable to a Member's Failure to Contribute Additional Capital. If as a result of a Member's failure to make an Additional Capital Contribution the Company shall fail to fully fund an additional capital contribution that the Company is required to make to Nash to fund a capital call by Nash DC and:

(1) such failure shall result in a dilution of Acquisition's interest in Nash DC, the entire effect of such dilution shall be charged against any and all distributions thereafter to be made to the Non-Funding Member, but not in excess of 100% of the distributions that would have been made to the Non-Funding Member but for this paragraph (d); and

(2) such failure shall result in another member of Nash DC making a default loan to Acquisition, the Defaulting Member shall be deemed to have funded such Additional Capital Contribution to the extent of such default loan, and (i) any payments made or deemed made by the Company on account of such default loan shall be deemed a distribution made to the Non-Funding Member for all purposes of this Agreement, and (ii) to the extent there is an execution against Acquisition's membership interest in Nash DC with respect to such default loan, the execution shall be deemed to have been made against the Non-Funding Member's interest in

the Company for the purposes of determining all subsequent distributions to be made by the Company with respect to such Non-Funding Member.

The provisions of this paragraph (d) shall apply in addition to the preceding paragraphs (a) and (b) if any portion of the Non-Funding Member failure to make an Additional Capital Contribution is funded by a Default Loan or Substituted Capital Contribution.

(e) Voluntary ROFO Additional Capital Contributions. If pursuant to Section 5.4 of the Nash DC LLCA, Acquisition shall exercise its right of first refusal to acquiring the Nash DC Interest of a Nash DC Transferring Member, the Manager may make a voluntary request among the Members for additional Capital Contributions to fund the purchase of such Nash DC Interest (a "**ROFO Capital Contributions**". Within Five (5) business days of the receipt of a written request (a "**ROFO Contribution Request**") for a the making of a ROFO Capital Contributions, each Member shall advise the Manager whether such Member wishes to participate and the extent of such participation (each such participating Member who funds a ROFO Capital Contribution, a "**ROFO Participating Member**"). The making of a ROFO Capital Contribution is voluntary and the provisions of paragraphs (b), (c) and (d) of this Section 2.2 shall not apply thereto except to a Member who defaults on its obligation to make a ROFO Contribution Request. If the Company shall acquire the Nash DC Interest of a Nash DC Transferring Member and the Members of the Company shall not have funded the ROFO Capital Contribution in proportion to their Capital Sharing Percentages, all distributions thereafter received by the Company is respect of the Nash DC Interest so acquired shall be allocated among the ROFO Participating Members in proportion to their respect ROFO Capital Contributions made in respect thereof, and the Manager is authorized to amend Sections 3.1 and 3.2 of this Agreement to reflect the same.

2.3 **Capital Sharing Percentages** .

(a) The Capital Sharing Percentages of each Member as of the Effective Date is set forth opposite such Member's name under the column heading Capital Sharing Percentage on Exhibit A attached to this Agreement. Upon the issuance of any additional Membership Interests pursuant to Article 6 or any Transfer of Membership Interest pursuant to Article 5 or any adjustment to the Capital Sharing Percentages of the Members required under this Agreement, including without limitation the provisions of Section 2.2(b)(iii), the Manager shall amend Exhibit A to reflect new Capital Sharing Percentages of the Members.

(b) Capital Accounts.

(a) Establishment and Maintenance. A separate capital account ("**Capital Account**") will be maintained for each Member. The Capital Account of each Member will be determined and adjusted as follows:

(i) Each Member's Capital Account will be credited with the Member's Capital Contributions, the Member's distributive share of Profits, any items in the nature of income or gain that are specially allocated to the Member under Sections 3.1(c) or 3.1(d), and the amount of any Company liabilities that are assumed by the Member or secured by any Company property distributed to the Member.

(ii) Each Member's Capital Account will be debited with the amount of cash and the Gross Asset Value of any Company property distributed to the Member under any provision of this Agreement, the Member's distributive share of Losses, any items in the nature of deduction or loss that are specially allocated to the Member under Section 3.1(c) or 3.1(d), and the amount of any liabilities of the Member assumed by the Company or which are secured by any property contributed by the Member to the Company.

(iii) If any interest in the Company is Transferred in accordance with the terms of this Agreement, the Transferee will succeed to the Capital Account of the Transferor to the extent it relates to the Transferred interest.

(iv) In determining the amount of any liability for purposes of Sections 2.3(b)(i) and 2.3(b)(ii), Code Section 752(c) and any other applicable provisions of the Code and the Treasury Regulations will be taken into account.

(b) Recalculation of Capital Sharing Percentages under Section 2.2(b)(iii). Capital Accounts shall also be subject to adjustment as and to the extent provided in clause (B) of Section 2.2(b)(iii)(including other provisions in this Agreement that apply with reference to such clause).

(c) Modifications by the Manager . The provisions of this Section 2.3 and the other provisions of this Agreement relating to the maintenance of Capital Accounts have been included in this Agreement to comply with Section 704(b) of the Code and the Treasury Regulations promulgated thereunder and will be interpreted and applied in a manner consistent with those provisions. Without limiting the generality of Section 3.1(c), the Manager may modify the manner in which the Capital Accounts are maintained under this Section 2.3 in order to comply with those provisions, as well as upon the occurrence of events that might otherwise cause this Agreement not to comply with those provisions.

2.4 **Interest on and Return of Capital**. No Member will be entitled to any interest on its Capital Account or any Capital Contributions which such Member makes to the Company. Except as expressly provided in this Agreement, no Member will have the right to demand or receive the return of all or any part of its capital or to receive property other than cash from the Company.

2.5 **Negative Capital Accounts**.

(a) Limit on Obligation to Restore. Except as expressly provided in this Section 2.5, no Member will be required to pay to the Company or to any Member any deficit or negative balance which may exist from time to time in the Member's Capital Account.

(b) Excess Withdrawals. If any Member receives a distribution under Sections 3.2 or 7.3 of this Agreement in excess of the amount such Member should have received under those Sections at the time the distribution was made, such Member shall be obligated to pay any such excess to the Member or Members rightfully entitled to such distribution immediately upon demand to do so by the Manager (provided that the Manager shall promptly notify such Member in writing upon becoming aware of such excess distribution).

2.6 **Adjustment of Gross Asset Value**. Gross Asset Value, with respect to any asset, is the adjusted basis for federal income tax purposes of that asset, except as follows:

(a) The initial Gross Asset Value of any asset contributed (or deemed contributed under Code Sections 704(b) and 752 and the Treasury Regulations promulgated thereunder) by a Member to the Company will be the fair market value of the asset on the date of the contribution as determined by the Manager .

(b) The Gross Asset Values of all Company assets will be adjusted to equal the respective fair market values of the assets as determined by the Manager , as of (i) the acquisition of an additional interest in the Company by any new or existing Member in exchange for more than a de minimis Capital Contribution (including pursuant to Section 2.2(b)), (ii) the distribution by the Company to a Member of more than a de minimis amount of Company property as consideration for an interest in the Company if the Manager determines that an adjustment is necessary or appropriate to reflect the relative economic interests of the Members in the Company, and (iii) the liquidation of the Company within the meaning of Treasury Regulations Section 1.704-1(b)(2)(ii)(g).

(c) The Gross Asset Value of any Company asset distributed to any Member will be the gross fair market value of the asset on the date of distribution, as determined by the Manager.

(d) The Gross Asset Values of Company assets will be increased or decreased to reflect any adjustment to the adjusted basis of the assets under Code Section 734(b) or 743(b), but only to the extent that the adjustment is taken into account in determining Capital Accounts under Treasury Regulations Section 1.704-1(b)(2)(iv)(m), provided that Gross Asset Values will not be adjusted under this Section 2.6(d) to the extent that the Manager determines that an adjustment under Section 2.6(b) is necessary or appropriate in connection with a transaction that would otherwise result in an adjustment under this Section 2.6(d).

(e) After the Gross Asset Value of any asset has been determined or adjusted under Section 2.6(a), 2.6(b) or 2.6(d), Gross Asset Value will be adjusted by the Depreciation taken into account with respect to the asset for purposes of computing Profits or Losses.

2.7 **Membership Interest Uncertificated**. The Membership Interest of the Members in the Company shall be uncertificated.

ARTICLE 3

ALLOCATIONS OF PROFITS AND LOSSES; DISTRIBUTIONS TO THE MEMBERS

3.1 **Allocations**. For each taxable year or portion thereof, Net Profit and Net Loss will be allocated (after all allocations pursuant to Section 3.1(c) have been made) as follows:

(a) Net Profit. For each taxable year or portion thereof, except as provided in Section 3.1(c), 3.1(d) and 7.3, Net Profit will be allocated among the Members so as to reduce,

proportionately, the differences between their respective Target Accounts and Partially Adjusted Capital Accounts (as increased by such allocation) for such year; provided, however, that no portion of the Net Profit for any taxable year will be allocated to a Member whose Target Account is less than or equal to his Partially Adjusted Capital Account for such taxable year.

(b) Net Loss. For each taxable year or portion thereof, except as provided in Section 3.1(c), 3.1(d) and 7.3, Net Loss will be allocated (after all allocations pursuant to Section 3.1(c) have been made) among the Members so as to reduce, proportionately, the differences between their respective Partially Adjusted Capital Accounts (as decreased by such allocation) and Target Accounts for such year; provided, however, that no portion of the Net Loss for any taxable year will be allocated to a member whose Target Account is greater than or equal to its Partially Adjusted Capital Account for such taxable year.

(c) Special Allocations. Except as otherwise provided in this Agreement, the following special allocations will be made in the following order and priority:

(i) Partnership Minimum Gain Chargeback. Notwithstanding any other provision of this Section 3.1, if there is a net decrease in Partnership Minimum Gain during any taxable year or other period for which allocations are made, prior to any other allocation under this Agreement, each Member will be specially allocated items of Company income and gain for that period (and, if necessary, subsequent periods) in proportion to, and to the extent of, an amount equal to such Member's share of the net decrease in Partnership Minimum Gain during such year determined in accordance with Treasury Regulations Section 1.704-2(g)(2). The items to be allocated will be determined in accordance with Treasury Regulations Section 1.704-2(g). This Section 3.1(c)(i) is intended to comply with the partnership minimum gain chargeback requirements of the Treasury Regulations, will be interpreted consistently with the Treasury Regulations and will be subject to all exceptions provided therein.

(ii) Partner Nonrecourse Debt Minimum Gain Chargeback. Notwithstanding any other provision of this Section 3.1 (other than Section 3.1(c)(i) which shall be applied first), if there is a net decrease in Partner Nonrecourse Debt Minimum Gain with respect to a Partner Nonrecourse Debt during any taxable year or other period for which allocations are made, any Member with a share of such Partner Nonrecourse Debt Minimum Gain (determined under Treasury Regulations Section 1.704-2(i)(5)) as of the beginning of the year will be specially allocated items of Company income and gain for that period (and, if necessary, subsequent periods) in an amount equal to such Member's share of the net decrease in the Partner Nonrecourse Debt Minimum Gain during such year determined in accordance with Treasury Regulations Section 1.704-2(g)(2). The items to be so allocated will be determined in accordance with Treasury Regulations Section 1.704-2(g). This Section 3.1(c)(ii) is intended to comply with the partner nonrecourse debt minimum gain chargeback requirements of the Treasury Regulations, will be interpreted consistently with the Treasury Regulations and will be subject to all exceptions provided therein.

(iii) Qualified Income Offset. A Member who unexpectedly receives any adjustment, allocation or distribution described in Treasury Regulations Sections

1.704-1(b)(2)(ii)(d)(4), (5) or (6) will be specially allocated items of Company income and gain in an amount and manner sufficient to eliminate, to the extent required by the Treasury Regulations, the Adjusted Capital Account Deficit of the Member as quickly as possible.

(iv) Gross Income Allocation. Each Member who has a deficit Capital Account at the end of any Company taxable year that is in excess of the amount of the Member is obligated to restore under Section 2.5, including any amount that he is deemed to be obligated to restore under Treasury Regulations Section 1.704-2(g)(1) and Section 1.704-2(i)(5),will be specially allocated items of Company income and gain in the amount of the excess as quickly as possible.

(v) Nonrecourse Deductions. Nonrecourse Deductions for any taxable year or other period for which allocations are made will be allocated among the Members in proportion to their respective Capital Sharing Percentages in the Company.

(vi) Partner Nonrecourse Deductions. Notwithstanding anything to the contrary in this Agreement, any Partner Nonrecourse Deductions for any taxable year or other period for which allocations are made will be allocated to the Member who bears the economic risk of loss with respect to the Partner Nonrecourse Debt to which the Partner Nonrecourse Deductions are attributable in accordance with Treasury Regulations Section 1.704-2(i).

(vii) Code Section 754 Adjustments. To the extent an adjustment to the adjusted ta basis of any Company asset under Code Sections 734(b) or 743(b) is required to be taken into account in determining Capital Accounts under Treasury Regulations Sections 1.704(b)(2)(iv)(m), the amount of the adjustment to the Capital Accounts will be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases the basis), and the gain or loss will be specially allocated to the Members in a manner consistent with the manner in which their Capital Accounts are required to be adjusted under Treasury Regulations Section 1.704-1(b)(2)(iv)(m).

(viii) Interest in Company. Notwithstanding any other provision of this Agreement, no allocation of Profit or Loss or item in Profit or Loss will be made to a Member if the allocation would not have "economic effect" under Treasury Regulations Section 1.704-1(b)(2)(ii) or otherwise would not be in accordance with the Member's interest in the Company as determined by the Manager in consultation with the Company's accountants and other tax advisors will have the authority to relocate any item in accordance with this Section 3.1(c)(viii).

(d) Curative Allocations. The allocations set forth in Section 3.1(c) (except for those in Section 3.1(c)(viii)) (the "**Regulatory Allocations**") are intended to comply with certain requirements of Treasury Regulations Sections 1.704-1(b) and 1.704-2. The Regulatory Allocations may effect results which would not be consistent with the manner in which the Members intend to divide Company distributions. Accordingly, the Manager is authorized to divide other allocations of Profits, Losses, and other items among the Members so as to prevent the Regulatory Allocations from distorting the manner in which Company distributions would be divided among the Members under Section 7.3. In general, the reallocation will be accomplished

by specially allocation other Profits, Losses and items of income, gain, loss and deduction, to the extent they exist, among the Member so that the net amount of the Regulatory Allocations and the special allocations to each Member is zero. The Manager in consultation with the Company's accountants and other tax advisors will have discretion to accomplish this result in any reasonably manner that is consistent with Code Section 704 and the related Treasury Regulations.

(e) Tax Allocations—Code Section 704(c). In accordance with Code Section 704(c) and the related Treasury Regulations, income, gain, loss and deduction with respect to any property contributed to the capital of the Company, solely for tax purposes, will be allocated among the Member so as to take account of any variation between the adjusted basis to the Company of the property for federal income tax purposes and the initial Gross Asset Value of the property (computed in accordance with Section 2.6). If the Gross Asset Value of any Company asset is adjusted under Section 2.6(b), subsequent allocations of income, gain, loss and deduction with respect to that asset will take account of any variation between the adjusted basis of the asset for federal income tax purposes and its Gross Asset Value in the same manner as under Code Section 704(c) and the related Treasury Regulations. Any elections or decisions relating to allocations under this Section 3.1(e) will be made in any manner that the Manager determines reasonably reflect the purpose and intention of this Agreement.

(f) Other Allocation Rules. For purposes of determining the Profits, Losses or other items allocable to any period, Profits, Losses and other items will be determined on a daily, monthly or other basis, as determined by the Manager in consultation with the Company's accountants and other tax advisors using any permissible method under Code Section 706 and the related Treasury Regulations.

(g) Member Acknowledgement. The Members agree to be bound by the provisions of this Section 3.1 in reporting their shares of Company income and loss for income tax purposes.

3.2 **Distributions**. Subject to Section 2.2(b), Section 2.2(d) and Section 7.3, after establishing cash reserves necessary to satisfy contingencies reasonably anticipated or associated with the Company's business, and subject to the rights of any creditor of the Company:

(a) Distribution of Net Operating Cash and Capital Proceeds. At such time or times as determined by the Manager, but not less than quarterly, the Manager will make distributions to the Members of any Net Operating Cash and Capital Proceeds in the following manner and priority:

(i) First, to the Manager to the extent there are any accrued and unpaid Asset Management Fees, in accordance with Section 8.1(b); and

(ii) Thereafter, distributions shall be made to the Members in proportion to their Capital Sharing Percentages.

(b) Notwithstanding anything to the contrary contained in this Agreement, for purposes of Section 3.2(a), any income tax credits allocated to a Member shall be deemed equivalent of Net Operating Cash distributed to such Member as of April 15 following the end of

the calendar year for which the credits are allocated for purposes of calculating the distributions under paragraph (a) above.

ARTICLE 4

MANAGEMENT OF THE COMPANY

4.1 **Manager**.

(a) Authority. Subject to Section 4.2, Section 4.3, and the provisions of this Section 4.1 and the management, control and direction of the Company and the operations, business and affairs of the Company shall be vested exclusively in the Manager. The Manager shall have the right, power and authority to perform or refrain from performing any and all acts that are delegated hereunder. Except as expressly provided to the contrary herein, all determinations relating to the business and affairs of the Company may be made by the Manager, in its sole discretion, and will not give rise to any right or claim by any Member or the Company unless made in violation of an express provision of this Agreement. Any decision which the Manager or the members are entitled to make under this Agreement will be made by the Manager in its sole and absolute discretion without any obligation to exercise any fiduciary duty to any Member and without any restriction on the Manager making a decision for the benefit of one Member as opposed to another Member, even if the Member receiving the benefit of such decision is an Affiliate of the Manager. All decisions and actions taken by the Manager under the authority of this Section 4.1 will be binding upon all of the Members and the Company. The Manager will be not liable or accountable, in damages or otherwise, to the Company or any Member for anything it may do or refrain from doing, except in the case of its willful breach of a material provision of this Agreement or gross negligence in connection with the business and affairs of the Company. To the fullest extent permitted by law (including the Act), each Member hereby agrees that neither the Manager nor any Member shall be bound by or subject to any fiduciary duty to any other Member or any of its Related Parties, and each Member, on behalf of itself and each of its Related Parties, hereby fully, unconditionally and irrevocably waives any right to assert or bring any claim or action against the Manager or any other Member for any breach of fiduciary duty.

(b) Appointment of Manager. The Manager of the Company, as of the Effective Date, shall be The Service GP. The Service GP shall have the right to appoint, remove or replace the Manager of the Company. The Manager shall serve until the earlier of his or her death, resignation from office, or removal or disqualification pursuant to Section 4.1(c). The Manager shall also have the authority, right, power, and discretion to conduct and manage the business and affairs of the Company and to undertake any and all actions for and on behalf of the Company subject to Section 4.2. Acts of the Manager will bind the Members and the Company. The Manager will not be liable or accountable, in damages or otherwise, to the Company or any Member for anything he may do or refrain from doing, except in the case of his willful breach of a material provision of this Agreement or gross negligence in connection with the business and affairs of the Company. All reasonable, documented, out-of-pocket third party expenses incurred by the Manager in connection with his, her or its necessary and proper service as Manager will be paid or promptly reimbursed by the Company. Nothing contained in this Section 4.1(c) is intended to affect the Capital Sharing Percentage of any Manager that is also a Member or the amount that may be payable to the Manager by reason of its interest in the Company.

(c) Removal of Manager . Notwithstanding anything to the contrary, the Members may remove and replace the Manager for Cause, or following the Bankruptcy of the Manager . In the event that the Manager is removed under this Section, the Members shall appoint a special Manager (the "**Special Manager** ") by unanimous vote of the Members to carry out the duties of the Manager hereunder.

4.2 **Major Decisions**. Notwithstanding any other provision of this Agreement to the contrary, the Manager may not perform or cause to be performed any of the following on behalf of the Company, or cause the Company to take any of the following actions (collectively, "**Fundamental Actions**"), without first obtaining the unanimous written consent of the Members (each a "**Company Consent**"):

(a) Except as provided in Article 6, authorize, issue or enter into any agreement providing for any Financing or issuance (contingent or otherwise) of (i) any notes or debt securities with options, warrants or other rights to acquire equity securities (including any notes or debt securities convertible into or exchangeable for equity securities or options, warrants or other rights to acquire equity securities issued in connection with the issuance of capital stock or options, warrants or other rights to acquire equity securities or containing profit participation features) of the Company or any of its Subsidiaries or (ii) any equity securities of the Company or any of its Subsidiaries;

(b) Cause the Company to make any material loans or advances to, guarantees or benefit of, or investments in, any Person;

(c) Except as provided in any drag-along to which the Company is subject, sell or agree to sell all or substantially all of the assets of the Company in a transaction or series of transactions or any IPO for the Company (the parties hereby acknowledge and agree that mere receipt of unsolicited offers, whether written or oral, does not constitute an agreement to sell, but counter offer or counterproposal to any such offer shall not be made by the Manager on behalf of the Company without Company Consent);

(d) Cause the Company to enter into, amend, modify or supplement any agreement, transaction, commitment or arrangement with the Manager , any Officer of the Company, or any entity in which any such Person or individual owns a beneficial interest (but excluding any Subsidiary of the Company or any other Company Property);

(e) create incur, assume or suffer to exist any new Indebtedness of the Company other than trade payables in the ordinary course of business;

(f) Cause the Company to indemnify any Person other than in a manner permitted in this Agreement;

(g) Except as provided in Section 9.7, make any amendment to, or repealing, this Agreement;

(h) Electing to classify the Company as anything other than a partnership for U.S. federal and state income tax purposes;

4.3 **Act of the Manager**. All actions or decisions reserved for or to be made by the Manager other than with respect to Fundamental Actions shall be made by the affirmative vote of the Manager, and the sole vote of the Manager shall constitute Company Consent and be sufficient to carry out the action or decision of the Company.

4.4 **Authority as to Third Persons**. The signed statement of the Manager reciting the authority of such Manager for any action, as to any third Person, will be conclusive evidence of the authority of the Manager to take such action; provided, however, this Section shall not serve to expand the rights of the Manager as set forth in this Agreement. Each Member and Manager will promptly execute instruments determined by the Manager to be appropriate to evidence the authority of such Manager to consummate any transaction permitted by this Agreement.

4.5 **Compensation of Manager** . The Manager(s) will not receive any compensation from the Company for serving as Manager, but all reasonable documented, out-of-pocket third party expenses incurred by the Manager in connection with his or her service as a Manager will be paid or promptly reimbursed by the Company. Nothing contained in this Section 4.5 is intended to affect the Capital Sharing Percentage of any Manager that is also a Member or the amount that may be payable to any Manager by reason of its interest in the Company.

4.6 **Intentionally Omitted**.

4.7 **Other Members**. The Members in their capacities as Members, may not act for or bind the Company and may not participate in the general management, conduct or control of the business or affairs of the Company. Any decision or action permitted to be taken by a Member in this Agreement with respect to the Company may be taken without any obligation to exercise any fiduciary duty to any Member or Manager and without any restriction on the Member making such decision or taking such action solely for the benefit of such Member or its Affiliates rather than for another Member or Manager , or their Affiliates. To the maximum extent possible under the Act, each Member waives any fiduciary duty or obligation to any other Member or any Manager

4.8 **Company Liabilities**. No Member (nor the Manager) shall have any liability for the return of the Member's Capital Contributions. All liabilities of the Company, including without limitation indemnity obligations under Section 4.9, will be liabilities of the Company as an entity, and will be paid or satisfied from the Company's assets. No liability of the Company will be payable in whole or in part by any Member or Manager or by any partner, shareholder, director, officer, member, Manager , agent or advisor of any Member or Manager .

4.9 **Indemnity**. The Company to the extent of its assets legally available for that purpose, will indemnify and hold harmless, the Members, Manager, and Officers of the Company (collectively, the "**Indemnified Person**s"), from and against any and all loss, damage, expense (including without limitation fees and expenses of attorneys and other advisors and any court costs incurred by any Indemnified Person) or liability by reason of anything any Indemnified Person does or refrains from doing for, or in connection with the business or affairs of, the Company (including any loss, damage, expense or liability caused by or attributable to the ordinary or simple negligence, as opposed to gross negligence, of the Indemnified Person), except to the extent that the loss damage, expense or liability results from the Indemnified Person's gross negligence or

willful breach of a provision of this Agreement, which in any such event causes damage to the Company.

4.10 **Limitations on Indemnity**.

(a) Waiver by Company. Subject to any applicable limitations contained in the Act, the Company, with Company Consent, may indemnify any Person for any loss, damage, expense or liability for which the Person would not be entitled to indemnification under Section 4.9.

(b) Waiver by Member. An Indemnified Person may waive the benefits of indemnification under Section 4.9.

(c) Certain Related Rights. The rights to indemnification under Section 4.9 are exclusive of other rights which any Indemnified Person may otherwise have at law or in equity, including without limitation common law rights to indemnification or contribution.

4.11 **Exculpation**. The following exculpatory provisions shall apply to this Agreement:

(a) Notwithstanding any other terms of this Agreement, whether express or implied, or any obligation or duty at law or in equity, neither the Manager(s), the Manager(s)' Affiliates, nor any of their respective officers, directors, shareholders, partners or employees nor any officer, employee, representative or agent of the Company and its Affiliates (individually an "**Exculpated Person**" and collectively, the "**Exculpated Persons**") shall be liable to the Company or any Member for any act or omission taken or omitted in good faith by an Exculpated Person and in the reasonable belief that such act or omission is in or is not contrary to the best interest of the Company and is within the scope of authority granted to such Exculpated Person by this Agreement provided that such act or omission does not result from gross negligence, willful misconduct, or intentional breach of a provision of this Agreement.

(b) An Exculpated Person may rely, and shall incur no liability in acting or refraining from acting, in reliance upon any resolution, certificate, statement, instrument, opinion, report, notice, request, consent, order, bond, debenture, paper, document, signature or writing reasonably believed by it to be genuine, and may rely on a certificate signed by an officer of any Person in order to ascertain any fact with respect to such Person or within such Person's knowledge and may rely on an opinion of counsel selected by such Exculpated Person with respect to legal matters unless such Exculpated Person acts in bad faith.

4.12 **Manager or Member Approvals**. Written approvals by the Manager or Members may be given in lieu of a meeting of Manager or Members. A written approval may be in one or more instruments each of which may be signed by one or more Members and/or the Manager, as applicable. The Manager may hold a meeting of the Members, as applicable, by conference telephone or other electronic means pursuant to which the Manager or Members participating in the meeting can hear each other, and participation in such a meeting shall constitute presence in person at such meeting.

4.13 **Company and Member Meetings**. . The Manager will endeavor to hold meetings of the Members no less often than one time per Fiscal Year and such meetings shall be held at the

principal office of the Company, or at such other place or places as shall be designated by the Manager, or virtually online. Attendance of a Manager or Member at a meeting of the Company shall constitute a waiver of notice of such meeting. At least fourteen (14) days prior to each meeting, the Manager shall provide written notice of the time and place of any meeting, which notice shall provide reasonably detailed information regarding any proposed action to be taken at the meeting.

4.14 **Methods of Giving Notice**. Whenever any notice is required to be given to any Member under the provisions of any law or this Agreement, it shall be given in accordance with Section 9.6.

4.15 **Business at Regular or Special Meeting**. The business to be transacted at, and the purpose of, any regular or special meeting of the Members need be specified in each notice of meeting together with such reasonably detailed information as may be available regarding any action to be taken, considered or approved at the meeting, and no unrelated business shall be conducted by the Manager or Members at such regular or special meeting beyond the general scope of the business and purpose identified in the notice or waiver without the consent of the Manager, as applicable.

4.16 **Intentionally Omitted**.

4.17 **Other Activities of the Members**. Each Member and the Manager will be free to own or otherwise participate directly or indirectly in the ownership or operation of any activity of any Person, regardless of whether or not the activity competes with or is enhanced by any activity of the Company.

4.18 **Partnership Representative**. The Manager or any individual designated by the Manager is designated as the "Authorized Representative" under Section 6223 of the Code. If an audit of the Company's federal income tax return is commenced, the partnership representative will promptly advise all Members of the audit and in its role as partnership representative, the Manager shall control any audits and shall have authority to make any and all elections and undertake any and all decisions for and on behalf of the Company in connection with such audit. Each Member (including any former Member) shall hold the Company harmless from and against any taxes borne by the Company that are properly allocable to the Member as determined by the Manager. All expenses incurred in connection with any audit, investigation, settlement or review by the IRS or any other governmental authority shall be borne by the Company.

ARTICLE 5

NEW MEMBERS, RESTRICTIONS ON TRANSFER OF MEMBER INTERESTS AND OTHER MATTERS

5.1 **Transfer of Interests**.

(a) Transfers of Company Interests. Without first obtaining Manager Consent and unless otherwise expressly permitted by this Article 5, (i) no Member may voluntarily or involuntarily Transfer, or create or suffer to exist any Encumbrance against, all or any part of its record or beneficial interest in the Company, and (ii) no Person may be admitted to the Company as a Member. Except for withdrawals in connection with a Transfer of an interest in the Company permitted by this Agreement, no Member may withdraw from the Company without Company Consent.

(b) Affiliate Transfers. Subject to Section 5.2 and the Transferee assuming (by express agreement in form and substance reasonably acceptable to the Manager) all of the transferor's rights and obligations under this Agreement, without the need for Company Consent, any Member may Transfer all (and only all) of its Membership Interest to a spouse, descendants and spouses of descendants (collectively "**Family Members**") or to trusts primarily for the benefit of the Transferor and/or such Family Members solely for estate planning purposes of such Member (an "**Affiliate Transfer**"), and in each such case the Transferee will be admitted as a Member; provided such Transfer is not otherwise proscribed under the Nash DC LCCA or any loan agreement entered into by Nash DC or its subsidiaries or would otherwise trigger a right of first refusal or co-sale right under the Nash DC LLCA.

5.2 **Procedure for Admission**. No Person will have title to any interest in the Company until such Person (i) has executed and delivered all documents deemed appropriate by the Manager to reflect his admission to the Company and his agreement to be bound by this Agreement and (ii) has paid all expenses connected with his admission. Any purported Transfer or Encumbrance will be ineffective until the Transferor and his Transferee furnish to the Company the instruments and assurances that the Manager may request, including without limitation, if requested, an opinion of counsel satisfactory to the Manager that (i) the interest in the Company being Transferred or Encumbered has been registered or is exempt from registration under the Securities Act and all applicable securities laws, (ii) such Transfer would not result in a violation of the Securities Act or any other Law, and (iii) such Transfer (including the taking of any action, filing, election, or other action which could result in a deemed Transfer), either considered alone or aggregated with prior Transfers by the same Member or any other Members, could not reasonably be expected to result in the Company being taxed as a corporation or otherwise being taxed as an entity (other than a partnership) for federal income tax purposes.

5.3 **Effect of Transfers**. Upon an effective Transfer of ownership of all or any part of a Member's interest in the Company, the Company will continue and, upon compliance with the provisions of Section 5.2, the Transferee of the interest, if the Transferee is not already a Member of the same class, will be admitted to the Company as a Member of that class or, if the Transferee is already a Member of the same class, will continue as a Member of the class with an increased Capital Sharing Percentage resulting from the Transfer.

5.4 **Tax Basis Reporting**. If the Company shall be required to report on any tax return the income tax basis of any Member's Membership Interest, upon the making of any Transfer of a Membership Interest, the Transferee shall provide the Company with the Transferee's initial income tax basis in such acquired Membership Interest. Such Transferee shall indemnify and hold harmless the Company for any liability resulting from such Transferee's failure to promptly provide the Company with the Transferee's correct income tax basis in such Membership Interest.

5.5 **Noncompliant Transfers**. Each Member agrees and acknowledges that any breach of the provisions of this Article 5 by any of its direct or indirect owners shall be considered a breach of this Article 5 by such Member. The Company may refuse to recognize any Transfer of Membership Interests that is effected in violation of the provisions of this Article 5.

5.6 **Drag-Along Rights**.

(a) Subject to Section 4.2, if any Person who is not an Affiliate of a Member (or a lender or tenant of a Member that offers to purchase the Membership Interests held by the Members in order to satisfy a pre-existing obligation of the Member or its Affiliates), offers to purchase all of the Membership Interests held by the Members, and if the Manager desires to accept such offer (an "**Approved Sale**"), then the Members will agree to consent to and shall raise no objections against the Approved Sale. In connection with any Approved Sale, the Members will, and hereby agree to, sell all of their Membership Interests on the same terms and conditions approved by the Manager. All Members and the Company will cooperate fully and in good faith in connection with the conduct of the sale process and the consummation of the Approved Sale and, subject to Section 5.6(b) hereof, agree to execute such agreements and instruments and take actions reasonably necessary to provide the representations, warranties, indemnities, covenants, conditions, escrow agreements and other provisions and agreements relating to such Approved Sale that are agreed to by the Manager.

(b) In order to exercise the bring along right under this Section 5.6, the Manager shall deliver notice (an "**Approved Sale Notice**") to the Members of the Approved Sale at least ten (10) days prior to its closing, which notice shall include a summary of terms and conditions of the Approved Sale and contain a copy of the applicable purchase and sale agreement (the "**Drag Sale Agreement**"). The exercise of the bring along right shall not be valid, and the Members shall not be required to execute the Drag Sale Agreement and participate in the Approved Sale, unless the Drag Sale Agreement (i) provides each Member with identical rights and consideration (as to both quantity and form), on a pro rata basis (provided that the allocation of such consideration among the Members shall be adjusted by the Manager in its judgement to reflect the respective economic interests of the Members as set forth in Section 3.2 hereof), (ii) does not require the Members to make any representations other than with respect to its ownership of such Membership Interests and its authority to transfer title to same, and (iii) does not create any obligations or liabilities for the Members, other than the obligation to sell such Member's Membership Interests, subject to the conditions contained therein, and provided that any indemnification obligation of the Members to the purchaser (such obligation to be capped at an amount that is no greater than the Members' proceeds from the Approved Sale) shall be a several but not joint obligation and shall relate only to a breach of warranties in connection with the ownership of the Members' Membership Interests and its authority to transfer title to same. Within five (5) Business Days following receipt of an Approved Sale Notice, the Members shall deliver to the Company written notice (in form and substance reasonably satisfactory to the Manager) setting forth the Members' agreement to consent to and raise no objections against, or impediments to, the Approved Sale and to sell its Membership Interests on the terms and conditions set forth in the Approved Sale Notice.

ARTICLE 6

ADDITIONAL INTERESTS

6.1 **Additional Membership Interests**. The Manager may create one or more classes of Membership Interests and, subject to Section 5.2, and issue such interests to existing Members and to additional Persons who are not Members. Each Member holding a Membership Interest shall have such rights, preferences, privileges and obligations of a Member as shall be specified for such class. The Manager may elect to issue units, representing the Membership Interests of each class, to the Members. The Company shall be entitled to treat the Person in whose name any Membership Interests of the Company stands on the books of the Company as the absolute owner thereof. The Company shall not be bound to recognize any equitable or other claim to, or interest in, such Membership Interest on the part of any other Person, whether or not the Company has express notice of any such claim.

6.2 **ROFO Contribution Membership Interests**. If following the making of a ROFO Contribution Request, the Company shall be unable to raise sufficient ROFO Capital Contributions among its existing Members to fully fund its election to acquire such Nash DC Interest, it may raise equity from third parties to fund the same upon such terms and conditions as the Manager shall determine, include with respect to any promote interests, so long as the distributions to be made to those who fund the purchase of the Nash DC Interest do not exceed the distributions that would have been made to the Nash Transferring Member on account of such Nash DC Interest.

ARTICLE 7

LIQUIDATION AND DISSOLUTION OF THE COMPANY

7.1 **Dissolution Events**. The Company will be dissolved upon the happening of any of the following events (collectively, "**Dissolution Events**"):

(a) All or substantially all of the assets of the Company are sold or distributed to the Members;

(b) The election to dissolve the Company that is approved by Company Consent; or

(c) There shall no longer be any Members of the Company.

7.2 **Effect of Dissolution Event**. Upon the occurrence of a Dissolution Event, the Company will be dissolved and liquidated under Section 7.3.

7.3 **Method of Liquidation**.

(a) Generally. Upon the happening of any of the Dissolution Events specified in Section 7.1, the Manager (referred to for purposes of this Section 7.3 as the "**Liquidator**"), will commence as promptly as practicable to wind up the Company's affairs as promptly as practicable,

unless the Liquidator determines that an immediate liquidation of Company assets would cause undue loss to the Company, in which event the liquidation may be deferred for a time determined by the Liquidator to be appropriate. Assets of the Company may be liquidated or distributed in kind, as the Liquidator determines to be appropriate. The Members will continue to share Profits and Losses from operations during the period of liquidation in the manner set forth in Section 3.1, however, any distributions to Members will be made in accordance with this Section 7.3. The proceeds from liquidation of the Company will be applied in the following order of priority:

(i) To payment of the debts and satisfaction of the other obligations of the Company, including debts owing to Members and their Affiliates.

(ii) To the establishment of any reserves deemed appropriate by the Liquidator for any liabilities or obligations of the Company, which reserves will be held for the purpose of paying liabilities or obligations and, at the expiration of a period the Liquidator deems appropriate, will be distributed in the manner provided in Section 7.3(a)(iii); then

(iii) The balance, if any, to the Members in accordance with the order of priority set forth in Section 3.2(a).

If the Company makes distributions in kind of Company property which secures indebtedness, each of the Members receiving the distribution of property subject to the indebtedness will be severally liable (as among each other, but not for the benefit of others) for its allocable share of the indebtedness (based upon the total value of the cash and property distributed to the Member under Section 7.3(a)(iii) as compared to the aggregate value of all liquidating distributions in cash and in kind made to all Members under Section 7.3(a)(iii)), provided that no Member will be deemed to have assumed any liability on any indebtedness secured by property distributed to any Member for which the Member is not liable under the terms of the instrument creating the indebtedness, and provided that the liability of each Member to other Members for indebtedness secured by property distributed to him will be limited to the value of his interest in the property. Indebtedness secured by property distributed to Members in kind need not be discharged out of the proceeds of liquidation of the Company. If a disproportionate distribution in kind is made under this paragraph, then each Member receiving Cash Items as opposed to property will be released from all liability for the indebtedness secured by the Company property distributed to other Members.

7.4 **Date of Termination**. The Company will terminate when all of the cash and property available for application under Section 7.3 have been applied in accordance with Section 7.3. The establishment of any reserves in accordance with the provisions of Section 7.3(a)(ii) will not extend the term of the Company, but any reserve will be distributed in the manner provided in Section 7.3 upon expiration of the period established for the reserve.

7.5 **Death, Dissolution, Legal Incompetency, or Bankruptcy of a Member**. The death, dissolution, declaration of legal incompetence or Bankruptcy of a Member will not dissolve the Company. The deceased, dissolved, incompetent or bankrupt Member's interest in the Company will pass to a successor in interest of the Member, who will succeed to the deceased,

dissolved, incompetent or bankrupt Member's entire economic interest (including any economic right to distributions under Section 3.2 and Section 7.3 hereof as well as economic burdens, including without limitation any obligation to make Capital Contributions under Section 2.2 hereof) in the Company as an assignee, and, upon consent of the Manager, will become a Member of the Company.

ARTICLE 8

FEES

8.1 **Company Fees**. The following fees for services shall be paid by the Company to the extent of available funds of the Company or by a third party where applicable so long as no act shall have occurred or been taken by the Member receiving such fee which constitutes willful misconduct, gross negligence, a breach of fiduciary duty hereunder or fraud in the performance of duties or obligations hereunder:

(a) At the closing of the Purchase Agreement and acquisition of the Property by Nash DC, Nash DC is paying to EdgePWR Holdings LLC an origination fee equal to its pro-rata share of two percent (2%) of the total purchase price under the Purchase Agreement (the "**Origination Fee**"). The Member's acknowledge that their Capital Contributions are funding their respective pro rata portion of such Origination Fee,

(b) An asset management fee equal to one percent (1.0%) of the total equity investment in the Company as reflected on the Company's balance sheet as of the closing of the acquisition of the Property by Nash DC (the "**Asset Management Fee**") which shall be paid within 30 days of each fiscal quarter to The Service GP. To the extent there is insufficient cash on hand to pay the Asset Management Fee, then such Asset Management Fee shall be funded by the Members on a pro-rata basis. Amounts paid to the Company by way of a Capital Call shall not be included in Member's Unrepaid Gross Adjusted Capital Contributions or taken into account in determining any Member's Unpaid Preferred Return.

ARTICLE 9

MISCELLANEOUS

9.1 **Fiscal Year**. The Fiscal Year of the Company will end on December 31, unless another Fiscal Year shall be approved by the Manager.

9.2 **Records**. The records of the Company will be maintained at the principal place of business of the Company or at any other location approved by the Manager . Appropriate records in reasonable detail will be maintained to reflect income tax information for the Members. The Company will pay the expense of maintaining its records, including the share of the expenses of any Manager or Affiliate of a Manager allocated to it in accordance with such allocation policies as in effect from time to time for maintenance of Company records. Each Member and Manager may inspect and make copies of the records maintained by the Company during reasonable business hours and upon reasonable notice.

9.3 **Annual Tax Returns**. The Manager , at the expense of the Company, will cause to be prepared and distributed to each Member after the end of each fiscal year, an annual income tax return of the Company for the Fiscal Year.

9.4 **Attorneys' Fees**. If the Company or any Member obtains a judgment against any other Member by reason of the breach of this Agreement or failure to comply with the terms hereof, reasonable attorneys' fees and costs as fixed by the court shall be included in such judgment.

9.5 **Representations of the Members**. Each Member represents and warrants to the Company and every other Member that it (a) is fully aware of, and is capable of bearing, the risks relating to an investment in the Company and can afford to sustain a total loss on such investment, (b) understands its Membership Interest has not been registered under the Securities Act or the securities law of any jurisdiction in reliance upon exemptions contained in those laws, (c) has acquired its Membership Interest for its own account, with the intention of holding the Membership Interest for investment purposes only and without any intention of participating directly or indirectly in any redistribution or resale of any portion of the Membership Interest in violation of the Securities Act or any applicable law prior to the Effective Date of this Agreement, (d) has (i) been granted access to all information requested by the Member regarding the proposed Company activities, including the financial aspects thereof, (ii) had the opportunity to meet with, ask questions of and receive responses from representatives of the Company, and (iii) had the opportunity to obtain additional information (to the extent the Company could obtain such information without unreasonable effort or expense) necessary to verify the accuracy of the information set forth in the materials supplied to the Member in connection with the Member's acquisition of its Membership Interest, (e) understands that there is no public market for its Membership Interest, that there is no present intent or likelihood that there will ever be such a public market, and that even if a market were to develop, the Member might never be able to transfer its Membership Interest, thus bearing the risk of its investment in the Company for a substantial period of time, and (f) the Member and, to the Member's knowledge, (i) each legal or beneficial owner of any interest in the Member is in compliance with all laws of any governmental authority in the United States of America relating to prevention of terrorism, money laundering and similar issues, including Executive Order No. 13224, 66 Fed. Reg. 49079 (Sept. 25, 2001), the rules and regulations of the Office of Foreign Asset Control, Department of the Treasury ("**OFAC**") and any enabling legislation or other Executive Orders in respect thereof, and (ii) no legal or beneficial owner of any interest in the Member (1) is listed on the Specially Designated Nationals and Blocked Persons List maintained by OFAC and/or on any other publicly-available list of terrorists or terrorist organizations maintained pursuant to any of the rules or regulations of OFAC or any other governmental authority in the United States of America, or (2) is owned or controlled by, or acts for or on behalf of, or knowingly does business or conducts other activities with, any person or entity identified on any of such lists.

9.6 **Notices**. The Manager will notify the Members of any change in the name, principal or registered office or registered agent of the Company. Any notice or other communication required by this Agreement must be in writing. Except as expressly provided to the contrary in this Section 9.6, notices and other communications will be deemed to have been given when delivered by hand, or dispatched by facsimile (with confirmation of receipt) or email transmission, or one business day if delivered by a national recognized commercial overnight delivery service, or three business days after being deposited in the United States mail (registered

or certified), postage prepaid, addressed to the Member to whom the notice is intended to be given at his address set forth below or, in the case of the Company, to its principal place of business. A Person may change his notice address by notice in writing to the Company and to each other Member given under this Section 9.6.

If to a Member:	To the address set forth in such Member's Joinder Agreement or as subsequently modified by written notice to the Company.
If to the Company or The Service GP:	Glacier Global Partners LLC 220 East 42nd Street, Suite 3002 New York, NY 10017 Attn: Yaniv Blumenfeld E-mail: yblumenfeld@glaciergp.com
With copy (not constituting notice) to:	Troutman Pepper Hamilton Sanders LLP Attn: Mark A. Goldsmith, Esq. 875 Third Avenue New York, NY 10022 E-mail: mark.goldsmith@troutman.com

9.7 **Amendments**. Except as provided in Section 2.2(e) or Article 6 or in order to amend Exhibit A to reflect Transfers, Additional Capital Contributions, ROFO Contributions and any other events which adjust Capital Sharing Percentages, no amendment of this Agreement will be valid or binding upon the Members, nor will any waiver of any term of this Agreement be effective, unless in writing and signed by all of the Members.

9.8 **Binding Effect**. Subject to Section 9.20, this Agreement will inure to the benefit of and will be binding upon the Manager(s), the Members, and their legal representatives, heirs, administrators, successors and assigns.

9.9 **Duplicate Originals**. This Agreement may be executed by facsimile or .pdf which signatures shall be deemed as originals. Any number of counterparts of this Agreement may be executed. Each counterpart will be deemed to be an original instrument and all counterparts taken together will constitute one and the same agreement.

9.10 **Construction**. The titles of the Articles and Sections in this Agreement have been inserted as a matter of convenience of reference only and do not affect the meaning or construction of any of the provisions of this Agreement.

9.11 **Governing Law; Arbitration**. This Agreement is to be governed by the laws of the State of Delaware, without giving effect to the principles of conflict of laws. In the event of any dispute arising under or in connection with this Agreement (a "Dispute") or Deadlock, such dispute or Deadlock shall be resolved through arbitration as provided herein.

(a) Good Faith Negotiations/Arbitration. Prior to arbitration, the Members shall attempt in good faith, to settle any Dispute or Deadlock by negotiation within ten (10) days of receipt of a party's written notice of Dispute. If they are unable to reach a negotiated resolution within ten (10) days, the Members may commence binding arbitration proceedings with the American Arbitration Association office located in New York, New York by filing a demand for arbitration in writing and by sending a copy of said demand to the other party, within a reasonable time after the dispute has arisen. The arbitration proceedings shall be governed by and decided in accordance with the Commercial Arbitration Rules of the American Arbitration Association, then in effect, unless the parties shall mutually agree otherwise, in writing. A single arbitrator shall be appointed and such arbitrator shall have not less than ten (10) years of experience in commercial real estate in New York, New York. . If the parties fail to agree upon one arbitrator within fifteen (15) days of submission of the dispute to arbitration, one arbitrator will be appointed in accordance with the commercial rules and practices of the American Arbitration Association provided that any such arbitrator so appointed shall not have had any prior contact or communication with any of the parties or their respective counsel.

(b) Attorney Fees/Damages. The arbitrator shall have no authority to award any damages nor make any ruling, finding or award that does not conform to the terms and conditions of this Agreement. The arbitrator is authorized to award to the prevailing party, if any, as determined by the arbitrator, all or a part of its costs and fees. "Costs and fees" shall include the arbitrators' fees, expenses, witness fees, reasonable attorney fees and out of pocket expenses.

(c) Non-Disclosure. The Members nor the arbitrator may disclose the results of any arbitration hereunder to any third party, without the prior written consent of the Manager.

(d) Finality of Award. The decision of the arbitrator shall be final and binding upon the Manager s and may be enforced by any competent court having jurisdiction thereof.

9.12 **Other Instruments**. The Members and the Manager s will execute such other instruments and agreements appropriate to carry out this Agreement or any provisions hereof.

9.13 **Legal Construction**. In case any one or more of the provisions contained in this Agreement for any reason is held to be invalid or unenforceable, the invalidity or unenforceability will not affect any other provision of this Agreement, which will be construed as if the invalid or unenforceable provision had not been contained in this Agreement and, in lieu of each invalid or unenforceable provision, there will be added automatically as a part of this Agreement a provision as similar in terms to the invalid or unenforceable provision as may be possible and be valid and enforceable.

9.14 **Gender; Etc.**. Words used in this Agreement in any gender will be deemed to include the masculine, feminine or neuter gender, singular words will include the plural and plural

words will include the singular; and the word "or" will be disjunctive but not necessarily exclusive, unless the context otherwise requires.

9.15 **Involvement of the Company in Certain Proceedings**. If any Manager , Member or any Affiliate of a Manager or Member becomes involved in legal proceedings unrelated to the business of the Company in which the Company is called upon to provide information, the Member or Manager will indemnify and hold harmless the Company against all reasonable costs and expenses, including without limitation reasonable fees and expenses of attorneys and other advisors, incurred by the Company in preparing or producing the required information or in resisting any request for production or obtaining a protective order limiting the availability of the information actually provided by the Company.

9.16 **Waiver of Partition and Certain Other Rights; Nature of Interests in the Company**. Each of the Members irrevocably waives any right or power that it might have: (a) to cause the Company or any of its assets to be partitioned; (b) to cause the appointment of a received for all or any portion of the assets of the Company; (c) to compel any sale of all or any portion of the assets of the Company; and (d) to file a complaint, or to institute any proceeding at law or in equity, to cause the dissolution or liquidation of the Company. Each of the Members has been induced to enter into this Agreement in reliance upon the waivers set forth in this Section 9.16 and without those waivers no Member would have entered into this Agreement. No Member has any interest in specific Company property. The interests of all Members in the Company are personal property.

9.17 **Entire Agreement**. Except as provided in this Section 9.17, this Agreement and the Joinder Agreements entered into with each Member contain the entire agreement among the parties and supersede all prior agreements, arrangements or understandings with respect thereto. In accordance with common industry practice, the Manager may enter into one or more "side letters" or similar agreements with certain Members ("Side Letters"), which are specific contracts among such Members, the Manager and the Company, pursuant to which the Manager grants to such Members specific rights, benefits or privileges that are not made available to Members generally. Notwithstanding the foregoing, the Manager shall not enter into any Side Letter that is substantially and materially detrimental to the Company or any other Member. Except as specifically set forth herein or in a Member's Side Letter, (i) each Side Letter is a separate agreement solely between the parties thereto, (ii) no Side Letter shall be deemed incorporated into this Agreement or to make any other party a third-party beneficiary thereof, and (iii) no Member shall be entitled to copies of any Side Letter entered into with any other Member; provided, however, as to the Member with whom the Company has entered into a Side Letter, this Agreement together with such Side Letter shall constitute the partnership agreement within the meaning of Section 761(c) of the Code.

9.18 **Non-Solicitation**. During the term of this Agreement, neither the Members nor their Affiliates, shall, directly or indirectly, encourage any tenant, customer, employee, officer, director, partners or investors of the Manager or of Capital to end their relationship with the Manager or with Capital.

9.19 **Accredited Investor**. Each Member represents and warrants that such Member is as an "accredited investor" as such term is defined in Rule 501 of Regulation D as enacted pursuant to Sections 3(b) and 4(2) of the Securities Act of 1933.

9.20 **Creditors Not Benefited**. Nothing in this Agreement is intended to benefit any creditor of (i) the Company, (ii) any Manager , (iii) any Manager , or (iv) any Member. No creditor of the Company, any Manager , any Manager , or any Member will be entitled to require the Manager(s) to solicit or accept any loan or additional Capital Contribution for the Company or to enforce any right which the Company or the Manager may have against a Member, an Manager or Manager, whether arising under this Agreement or otherwise

9.21 **Confidentiality**. Except to the extent disclosure is required to comply with securities laws or the order of any court, the Members shall maintain all information regarding the business and affairs of the Company on a confidential basis and shall not disclose such information to third parties except to the extent such disclosure is required in the furtherance of the Company's business. The Manager may require any Member to execute and deliver a non-disclosure agreement as a condition to receiving any confidential information regarding the Company, the Property or the tenants of the Property.

[signature pages to follow]

IN WITNESS WHEREOF, each of the parties has executed this Limited Liability Company Agreement, as of the date first set forth above, and agrees to be bound by this Agreement.

THE COMPANY

By: **NASH SERVICES GP LLC**, its manager

By:_____
Name: _____
Its: _____

MEMBERS:

Data Center El Segundo L.A. Limited Partnership

By:_____
Name: _____
Its: _____

Exhibit A

Members' Names, Capital Contributions and Capital Sharing Percentage

[To Be Attached]

Exhibit B

Definitions

Defined Terms. As used in this Agreement, the following terms will have the following meanings when used herein with initial capital letters:

"Act" means the Delaware Limited Liability Company Act, as amended.

"Acquisitions" has the meaning assigned to it in the Recitals.

"Additional Capital Contributions" means any amount of cash or property contributed or deemed to be contributed to the capital of the Company by the Members pursuant to Section 2.2.

"Additional Funds" has the meaning assigned to it in Section 2.2(a).

"Adjusted Capital Account" means, with respect to a Member, such Member's Capital Account after (i) crediting to such Capital Account any amount which such Member is deemed to be obligated to restore pursuant to the penultimate sentence of Treasury Regulation Sections 1.704-2(g)(1) and 1.704-2(i)(5); (ii) crediting to such Capital Account any amount such Member is unconditionally obligated to contribute to the Company under Section 2.5 of this Agreement or applicable law; and (iii) debiting to such Capital Account the items described in Treasury Regulation Section 1.704-1(b)(2)(ii)(d)(4), (5), and (6). This definition of Adjusted Capital Account is intended to comply with the provisions of Treasury Regulations Section 1.704-1(b)(2)(ii)(d) and 1.704-2, and will be interpreted consistently with those provisions.

"Adjusted Capital Account Deficit" means, with respect to a Member, the deficit balance, if any, in that Member's Adjusted Capital Account.

"Asset Management Fee" has the meaning assigned to it in Section 8.1(b).

" Manager " has the meaning assigned to it in Section 4.1(c).

"Affiliate" means, with respect to any Member, a Family Member and any Person that directly, or indirectly through one or more intermediaries, controls, is controlled by or is under common control with the Member to whom reference is made or a Family Member of such Member. The term "control" as used herein (including the terms "controlling," "controlled by," and "under common control with") means the possession, directly or indirectly, of the ability to direct the management, policies or investment decisions of such Person, whether by voting securities, by contract or otherwise.

"Affiliate Transfers" has the meaning assigned to it in Section 5.1(b).

"Agreement" means this Limited Liability Company Agreement, as the same may be amended from time to time.

"Bankruptcy" with respect to a Person means, (a) the entry of a final decree or order for relief of such Person by a court of competent jurisdiction in any involuntary case involving such Person under any bankruptcy or insolvency law and the expiration of the applicable appeals period without any appeal being filed; (b) the appointment of a receiver, liquidator, assignee for the benefit of creditors, custodian, trustee, sequestrator, or other similar agent for such Person or for

all of such Person's assets or property; (c) the entry of a final non-appealable order for the winding up or liquidation of such Person's affairs by a court of competent jurisdiction in any involuntary case involving such Person under any bankruptcy or insolvency law; (d) the filing with respect to such Person of a petition in any such involuntary bankruptcy case which petition remains undismissed for a period of ninety (90) days; (e) the commencement by such Person of a voluntary case under any bankruptcy or insolvency law; (f) the consent by such Person to the entry of an order for relief in an involuntary case under any such law or to the appointment of or taking possession by a receiver, liquidator, assignee, trustee, custodian, sequestrator, or other similar agent for such Member or for all of such Member's assets or property; or (g) the making by such Person of any general assignment for the benefit of creditors.

"Company Consent" has the meaning assigned to it in Section 4.2.

"Budget" has the meaning assigned to it in Section 4.16(a).

"Business Day" means any day other than Saturday or Sunday or other day upon which national banks in New York are permitted or required by law to be closed.

"Capital Account" has the meaning assigned to it in Section 2.4(a).

"Capital Call" has the meaning assigned to it in Section 2.2(a).

"Capital Contribution" means, with respect to any Member, the amount of money and the initial Gross Asset Value of any property (other than money) contributed to the Company with respect to the interest in the Company held by that Member. Any reference in this Agreement to the Capital Contribution of a Member will include a Capital Contribution made by any prior Member with respect to the Company interest of the Member.

"Capital Proceeds" all proceeds received by the Company in connection with the sale, financing, refinancing, after payment of all costs, expenses taking into account all reserves as determined by the Manager.

"Capital Sharing Percentage" of each Member set forth opposite the name of the Member on Exhibit A attached hereto, as the same may be adjusted from time to time in accordance with the provisions of this Agreement, including without limitation the provisions of Section 2.2(b)(iii).

"Cash Items" means securities and cash and cash equivalent items.

"Cause" shall mean the occurrence of one or more of the following events by a Manager: (i) any material breach of any of the terms and conditions of this Agreement, unless such breach is cured within Reasonable Period; (ii) any indictment, conviction of, or plea of guilty or nolo contendere to a felony, whether or not in connection with the operation of the Company; (iii) any action involving fraud, gross negligence or willful misconduct, in connection with the management of the Company; or (iv) the death or dissolution of the Manager.

"Certificate" has the meaning assigned to it in Section 1.1.

"Code" means the Internal Revenue Code of 1986, as amended from time to time. References to sections of the Code include successor provisions to those sections.

"Company" means the limited liability company formed under this Agreement.

"Company Property" means any and all assets developed or acquired by the Company or any of its Subsidiaries with Company Consent, from time to time, as contemplated by and in accordance with the provisions of this Agreement.

"Control" means, (including, with correlative meaning, the terms "controlling," "controlled by" and "under common control with") with respect to any Person, the possession, directly or indirectly, of the power to direct or cause the direction of the management, policies or investment decisions of such Person, whether through the ownership of voting securities, by contract or otherwise.

"Default Loan" has the meaning assigned to it in Section 2.2(b)(ii).

"Depreciation" means, for each taxable year or other period, an amount equal to the depreciation, amortization or other cost recovery deduction allowable with respect to an asset for the year or other period, except that if the Gross Asset Value of an asset differs from its adjusted basis for federal income tax purposes at the beginning of the year or other period, Depreciation will be an amount which bears the same ratio to the beginning Gross Asset Value as the federal income tax depreciation, amortization or other cost recovery deduction for the year or other period bears to the beginning adjusted tax basis, provided that if the federal income tax depreciation, amortization, or other cost recovery deduction for the year or other period is zero, Depreciation will be determined with reference to the beginning Gross Asset Value using any reasonable method, in accordance with GAAP, approved by the Manager .

"Dissolution Events" has the meaning assigned to it in Section 7.1.

"Drag Sale Agreement" has the meaning assigned to it in Section 5.6(b).

"Due Date" has the meaning assigned to it in Section 2.2(a).

"Effective Date" has the meaning assigned to it in the recitals.

"Encumbrance" means any lien, pledge, encumbrance, collateral assignment or hypothecation and the terms "Encumber," "Encumbered," and "Encumbering" shall have meanings that are correlative to the foregoing.

"Exculpated Person(s)" has the meaning assigned to it in Section 4.11(a).

"Family Members" has the meaning assigned to it in Section5.1(b).

"Financing" shall mean any loan or indebtedness (whether construction, permanent, mezzanine, bridge, takeout or otherwise) other than unsecured trade payables.

"Fiscal Year" means the taxable year of the Company for U.S. federal income tax purposes.

"Fundamental Action" has the meaning set forth in Section 4.2.

"Funding Members" has the meaning assigned to it in Section 2.2(b).

"Governmental Authority" means any legislature, agency, bureau, branch, department, division, commission, court, tribunal, magistrate, justice, multi-national organization, quasi-governmental body, or other similar recognized organization or body of any federal, state, county, municipal, local, or foreign government or other similar recognized organization or body exercising similar powers or authority.

"Gross Adjusted Capital Contributions" means, with respect to each Member, the total amount of Capital Contributions (including any Substituted Capital Contributions but excluding any Default Loans) contributed by the Member to the Company pursuant to the terms hereof, as adjusted pursuant to the formula set forth in Section 2.2(b)(iii), but excluding any amounts paid by a Member to fund Asset Management Fees paid to The Service GP.

"Gross Asset Value" means, with respect to any asset, the adjusted basis of the asset for federal income tax purposes, adjusted as provided in Section 2.6.

"Immediate Family" means with respect to any individual the spouse, parents, siblings and descendants of such individual.

"Indebtedness" means, with respect to any Person, (a) all indebtedness of such Person, whether or not contingent, for borrowed money (including, the case of the Company or its Subsidiaries, any Financing), (b) all indebtedness of such Person evidenced by notes, bonds, debentures or similar instruments, (c) all obligations of such Person for the deferred purchase price of property or services, (d) all indebtedness secured by a purchase money mortgage or other lien to secure all or part of the purchase price of property subject to such lien, (e) all indebtedness created or arising under any conditional sale or other title retention agreement with respect to property acquired by such Person (even though the rights and remedies of seller or lender under such agreement in the event of default are limited to repossession or sale of such property), (f) all obligations of such Person as lessee under leases that have been or should be, in accordance with GAAP, recorded as capital leases, (g) all obligations, contingent or otherwise, of such Person under acceptances, letter of credits, letters of guaranty or similar facilities or instruments, (h) all obligations of such Person to purchase, redeem, retire, decease or otherwise acquire for value any securities of such Person or any warrants, rights or options to acquire such securities, (i) any obligations under interest rate or currency swap or similar hedge agreements, and (j) all indebtedness of others referred to in clauses (a) through (i) above guaranteed directly or indirectly in any manner by such Person, or in effect guaranteed directly or indirectly by such Person through an agreement to pay or purchase such indebtedness or to advance or supply funds for the payment or purchase of such indebtedness, or otherwise to assure a creditor against loss, but excluding trade payables.

"Indemnified Persons" has the meaning assigned to it in Section 4.9.

"Initial Capital Contributions" means, as to any Member, any amount contributed to the capital of the Company by a Member pursuant to Section 2.1.

"IPO" means a public offering of securities on a recognized stock exchange.

"Joinder Agreement" means the joinder agreement entered into a by Member upon the acquisition of a Series Interest substantially in the form annexed hereto as Exhibit B.

"Law" means any applicable law (statutory, common, or otherwise), constitution, treaty, convention, ordinance, equitable principle, code, rule, regulation, executive order, or other similar authority enacted, adopted, promulgated, or applied by any Governmental Authority, each as amended and now and hereinafter in effect.

"Liquidator" has the meaning assigned to it in Section 7.3(a).

"Losses" has the meaning assigned to it in the definition of Profits and Losses.

"Manager(s)" has the meaning assigned to it in Section 4.1(a).

"Members" means the Persons identified as Members on the signature page to this Agreement and any other Persons admitted to the Company as Members in accordance with this Agreement, and each individually is referred to herein as a "Member".

"Membership Interest" means with respect to any Member at any time, the interest of such Member in the Company at such time, including the right of such Member to any and all benefits to which a Member may be entitled as provided in this Agreement, together with the obligations of such Member to comply with all the terms and provisions of this Agreement.

"Nash" has the meaning assigned to it in the Recitals.

"Nash DC" means Nash DC LLC, a Delaware limited liability company.

"Nash DC Buy-Sell Buyer" means a member of Nash DC who is a buyer pursuant to the buy-sell provisions contained in the Nash DC LLCA.

"Nash DC Capital Call Notice" means a request for additional capital contributions made by Nash DC to its members pursuant to the Nash LCCA.

"Nash DC Funding Member" means a member of Nash DC who timely funds the request for additional capital contributions made by Nash DC to its Members pursuant to the Nash LCCA.

"Nash DC Interest" means a membership interest in Nash DC.

"Nash DC LCCA" means the limited liability company agreement of Nash DC.

"Nash DC Transferring Member" means a member of Nash DC who is transferring a Nash DC Interest in connection with a transfer that is subject to the right of first offer provisions of the Nash DC Agreement.

"Net Loss" means, for any period, the excess of Losses over Profits, if applicable, for such period.

"Net Operating Cash" means all cash receipts (other than capital contributions) other than the Capital Proceeds less costs, expenses, and reserves as determined by the Manager .

"Net Profit" means, for any period, the excess of Profits over Losses, if applicable, for such period.

"Non-Funding Member" has the meaning assigned to it in Section 2.2(b).

"Nonrecourse Deduction" has the meaning assigned to it in Treasury Regulations Section 1.704-2(c).

"Nonrecourse Liability" has the meaning assigned to it in Treasury Regulations Section 1.704-2(b)(3).

"Partially Adjusted Capital Account" means, with respect to any Member for any taxable year or other period of the Company, the Capital Account balance of such Member at the beginning of such year or period, adjusted for all contributions and distributions during such year or period and all special allocations pursuant to Section 3.1(c) with respect to such year or period but before giving effect to any allocations of Net Profit or Net Loss pursuant to Sections 3.1(a) and (b).

"Partner Nonrecourse Debt" has the meaning assigned to it in Treasury Regulations Section 1.704-2(b)(4).

"Partner Nonrecourse Debt Minimum Gain" has the meaning assigned to it in Treasury Regulations Section 1.704-2(i)(5).

"Partner Nonrecourse Deductions" has the meaning assigned to it in Treasury Regulations Section 1.704-2(i)(2).

"Partnership Minimum Gain" has the meaning assigned to it in Treasury Regulations Section 1.704-2(d).

"Person" means an individual or an entity.

"Profits" and "Losses" mean, for each taxable year or other period, an amount equal to the Company's taxable income or loss for the year or other period, determined in accordance with Section 703(a) of the Code (including all items of income, gain, loss or deduction required to be stated separately under Section 703(a)(1) of the Code), with the following adjustments:

(a) Any income of the Company that is exempt from federal income tax and not otherwise taken into account in computing Profits or Losses will be added to taxable income or loss;

(b) Any expenditures of the Company described in Code Section 705(a)(2)(B) or treated as Section 705(a)(2)(B) expenditures under Treasury Regulations Section 1.704-1(b)(2)(iv)(i), and not otherwise taken into account in computing Profits or Losses, will be subtracted from taxable income or loss;

(c) Gain or loss resulting from any disposition of Company property with respect to which gain or loss is recognized for federal income tax purposes will be computed by reference to the Gross Asset Value of the property, notwithstanding that the adjusted tax basis of the property differs from its Gross Asset Value;

(d) In lieu of depreciation, amortization and other cost recovery deductions taken into account in computing taxable income or loss, there will be taken into account Depreciation for the taxable year or other period;

(e) Any items which are specially allocated under Section 3.1(c) or Section 3.1(d) will not affect calculations of Profits or Losses; and

(f) If the Gross Asset Value of any Company asset is adjusted under Section 2.6(b) or 2.6(c), the adjustment will be taken into account as gain or loss from disposition of the asset for purposes of computing Profits or Losses.

"Proportionate Share" means a Member's share of an item, based upon the respective Capital Sharing Percentages of that Member as compared to the Capital Sharing Percentages of all Members entitled to share in the item.

"Purchase Agreement" has the meaning assigned to it in the Recitals.

"Reasonable Period" means, with respect to any defaulting Person, if such default is reasonably capable of cure without harm to the Company or any of the Members, a period of five (5) Business Days

for any default which may be cured by the payment of money, and twenty (20) Business Days after such defaulting Person receives written notice of its default from a non-defaulting Person for any other curable default; provided, however, that if such breach can be cured but cannot reasonably be cured within such 20-Business Day period, the period shall continue, if such defaulting Person commences to cure the breach within such 20-Business Day period, for so long as such defaulting Person diligently prosecutes the cure to completion up to a maximum of the greater of (a) forty (40) Business Days, or (b) the period of time allowed for such performance under any applicable agreement relating to the applicable default.

"Related Party" means with respect to any Person, (i) any Affiliate of such Person or (ii) any officer, director, partner, Manager , trustee, fiduciary, employee, agent or representative of such Person, in such capacity, or Affiliate, in such capacity

"Regulatory Allocations" has the meaning assigned to it in Section 3.1(d).

"Representative" of a Person shall be construed broadly and shall include such Person's partners, members, officers, directors, Manager s, investment advisors, employees, agents, advisors, counsel, accountants and other representatives.

"ROFO Capital Contributions" has the meaning assigned to it in Section 2.2(e).

"ROFO Contribution Request" has the meaning assigned to it in Section 2.2(e).

"ROFO Participating Member" has the meaning assigned to it in Section 2.2(e).

"Securities" means "securities" as defined in Section 2(1) of the Securities Act and includes, with respect to any Person, such Person's capital stock or other equity interests or any options, warrants or other securities that are directly or indirectly convertible into, or exercisable or exchangeable for, such Person's capital stock or other equity or equity-linked interests, including phantom stock and stock appreciation rights.

"Securities Act" means the Securities Act of 1933, as amended, or any successor Federal statute, and the rules and regulations of the Commission promulgated thereunder, all as the same shall be in effect from time to time.

"Subsidiary" means, with respect to any Person, any corporation, limited liability company, partnership or other entity of which at least a majority of the securities or other ownership interests having by the terms thereof ordinary voting power to elect a majority of the board of directors or other persons performing similar functions of such corporation, limited liability company, partnership or other entity (irrespective of whether or not at the time securities or other ownership interests of any other class or classes of such corporation, limited liability company, partnership or other entity shall have or might have voting power by reason of the happening of any contingency) is at the time directly or indirectly owned or controlled by such Person or one or more Subsidiaries of such Person or by such Person and one or more Subsidiaries of such Person.

"Substituted Capital Contribution" has the meaning assigned to it in Section 2.2(b)(iii).

"Target Account" means, with respect to any Member as of the end of any taxable year of the Company or other period, the excess of (a) an amount (which may be positive or negative) equal to the hypothetical distribution (or contribution) such Member would receive (or be deemed required to contribute) with respect to its equity interest in the Company if all assets of the Company, including cash, were sold for cash equal to their Gross Asset Value (taking into account any adjustments to Gross Asset

Value for such year or other period), all liabilities were then due and were satisfied according to their terms (limited, with respect to each nonrecourse liability, to the Gross Asset Value of the assets securing such liability) and all remaining proceeds from such sale were distributed pursuant to Section 3.2 over (b) the amount of Partnership Minimum Gain and Partner Nonrecourse Debt Minimum Gain that would be charged back to such Member as determined pursuant to Treasury Regulation Section 1.704-2 immediately prior to such sale.

"Transfer" means to sell, assign, transfer, lease or otherwise dispose of property, including, without limitation, an interest in the Company and the terms "Transferred," "Transfers," Transferring," "Transferor" and "Transferee" shall have meanings that are correlative to the foregoing.

"Unpaid Preferred Return" means any and all accrued Preferred Return, less distributions to Members under Sections 3.2(a)(ii).

"Unrepaid Gross Adjusted Capital Contributions" of a Member shall mean the aggregate of all Gross Adjusted Capital Contributions of the Member, less distributions to the Member pursuant to Sections 3.2(a)(iii).